Techcrast
CONNECTEDSUITE

FOUNDER'S GUIDE · OWNERSHIP, STRUCTURE, PARTNERS AND INVESTORS

Keeping Control While the Estate Grows

How to hold the platform, the brand and the money so that partners, clients and investors can all join without anyone but you deciding what ConnectedSuite becomes. Which document goes to whom, what each one gives away, and what it must never give away.

For	Prepared	Status	Act on with
Emmanuel Birgen, founder	**20 October 2026**	**Guidance, not legal advice**	**A Kenyan advocate and tax adviser**

Strictly confidential: for the founder only. Do not forward to partners or investors.

01 The principle

Control comes from owning three things and contracting everything else: **the platform's intellectual property**, **the company that owns it**, and **the money flow**. Partners, clients and investors should each get what they need, and none of them should need one of those three.

WHO	WHAT THEY GET	WHAT THEY NEVER GET	DOCUMENT
Founding partners (Axe, Micromart)	A fixed partner rate, the Interchange, a Product Council seat, early access, a referral share	Equity by default, IP, a veto on the roadmap	Ecosystem Partner Agreement + Founding Partnership Agreement
New partner lenders	The same, at the price-book partner rate	The same	Ecosystem Partner Agreement (TC-EPA)
Startup lenders	The console at 20,000 and a clear growth path	Partner rights	Startup Lender Programme (TC-SLP)
All prospects	Prices, editions, discounts, examples	Partner rates	Price Book
Investors	Economic interest (preference shares), information and pro-rata rights	Board control, IP, day-to-day decisions	Investor Memorandum, then a term sheet
Staff and contributors	Options from a pool, vesting over 4 years	Votes	Option plan and IP assignment

02 Fix this first: whose invoice, whose till

> **The issue**
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> Today ConnectedSuite invoices are issued in the name of **Techcrast Software Solutions Limited**, and the October invoices were raised on Techcrast's own Zoho account. From now on payment settles through the BirgenAI wallet into **Till 5620596**, which you describe as your business till. Unless you own Techcrast outright, that means one company's receivables are paid to another person's account. It creates a tax problem: KRA sees Techcrast with income it never received and you with income you never invoiced. It also creates a governance problem with Techcrast's other shareholders and directors, and it weakens your claim that the platform is yours.

Choose one of these arrangements, put it in writing, and make the invoice and the till match:

OPTION	HOW IT WORKS	INVOICE SAYS	MONEY GOES TO	GOOD WHEN
A. Your company sells; Techcrast is the brand	Your holding company (section 3) owns the platform and bills lenders directly. A licence from Techcrast covers its name and marks, or the product is branded "Techcrast ConnectedSuite, a product of [HoldCo]".	[HoldCo] Ltd	A till or paybill in HoldCo's name	You want the cleanest control and the revenue on your own books. **Recommended.**

B. Techcrast sells under licence from you	Techcrast invoices and collects. Your HoldCo grants Techcrast a distribution licence and is paid a licence fee (for example 70–85% of subscription revenue) monthly.	Techcrast	Techcrast, then HoldCo by licence fee	Techcrast's existing relationships matter and its partners want to stay in the chain.
C. You own Techcrast	If you already control Techcrast, move IP and contracts into it formally and open the till in its name.	Techcrast	A till in Techcrast's name	You already hold the majority of Techcrast's shares and its board.

Whichever you choose, the code is ready. The issuer name, email, KRA PIN and till are environment settings (`BILLING_ISSUER_NAME`, `BILLING_TILL_NUMBER` and so on) in `connected-suite/src/lib/billing/issuer.ts`, so changing them needs no release. Register the till to the same legal entity that issues the invoice, and keep personal and business money apart.

03 The structure to build

LAYER 1

BirgenAI Holdings Ltd (HoldCo)

Owns the code, the models, the domains, the trademarks and the Interchange protocol. You hold the voting shares. Investors and the option pool come in here.

LAYER 2

Operating company

Contracts with lenders, employs staff, holds the till and the ODPC registration. Either HoldCo itself at first, or a 100%-owned subsidiary later.

LAYER 3

Commercial contracts

Partner agreements, startup subscriptions, the Techcrast brand licence (if option A or B), bureau agreements and data-processing terms.

Steps, in order

1. **Establish the facts.** Who owns Techcrast and in what proportions; who is on its board; who owns the domain servicesuitecloud.com and the ServiceSuite product; and whether any contract you signed assigned your work to Techcrast or anyone else. Your repositories sit under your personal GitHub account (emmanuel-arch), which helps your position but does not by itself settle ownership.
2. **Incorporate HoldCo** as a private company under the Companies Act 2015, with articles that create two share classes (section 4).
3. **Assign the IP into HoldCo** by deed: the source code, models, documentation, designs, domain names and unregistered marks. Get matching written assignments from anyone who has written code or designs for the estate, including contractors.
4. **Settle the Techcrast arrangement** (option A, B or C in section 2) in a signed agreement, and align invoices and the till.
5. **Register.** HoldCo (and the operating company, if separate) with the Office of the Data Protection Commissioner as a data processor; KRA PIN, VAT if turnover requires it, and eTIMS for invoices (section 7); trademarks at KIPI: ConnectedSuite, CallBox, The Interchange, Ledgerly, PeopleHub, Riri and BirgenAI, after a clearance search.

6 **Novate contracts.** Partner agreements already let Techcrast assign to "an affiliate that owns or operates the Platform" (TC-EPA clause 14), so the agreements you sign now can move to HoldCo later without renegotiation.

04 Share design: keeping the vote

CLASS	HELD BY	VOTES	ECONOMICS
Class A ordinary	You	10 votes per share	Ordinary
Class B ordinary	Option pool, later co-founders	None, or 1 per share	Ordinary
Preference shares	Investors, on conversion	1 per share on a limited list of protective matters	1× non-participating liquidation preference

- **Board.** Articles let the Class A holder appoint a majority of directors. Start with a three-person board: you plus two you appoint. An investor seat comes, at most, at a priced Series A, and still as a minority.
- **Reserved matters** that need your consent as Class A holder, whatever the board says: selling the company or the IP, issuing new shares, changing the articles, appointing or removing the CEO, and licensing the platform's source code.
- **Investor protections to accept** (they are normal and fair): no new senior class without their consent, information rights, pro-rata rights, and a veto on changing their own share rights. **Resist**: a board majority, a veto on the budget or on hiring, a veto on new partner agreements, and full-ratchet anti-dilution.
- **Dilution budget.** Pre-seed 10–15%, seed 15–20%, option pool 10%. On that path you hold roughly 55–65% of the economics after a seed round, and far more of the vote.
- **Founder vesting.** If investors ask for it, offer vesting only on newly issued founder shares, with full acceleration on a sale.
- **Transfers.** A right of first refusal for HoldCo and Class A on any share transfer, and drag-along rights at a sale you approve.

05 Partners: generous terms, no ownership

Benedict Omondi wants Axe to build the estate with you. That is valuable, and the Founding Partnership Agreement rewards it with price, influence and income rather than ownership:

- **Price:** 30,000 a month fixed for 24 months, against 45,000 at list.
- **Influence:** a permanent Product Council seat and a recorded reason for every roadmap decision. Advice, not a veto; you decide priority and design (clause 4.1).
- **Income:** 10% of first-year subscriptions from every lender Axe refers.
- **Status:** Founding Partner, with a most-favoured-partner promise on price.

> **If a partner insists on equity**
>
> Offer a **performance warrant** issued by HoldCo: at most 1–2%, non-voting Class B, vesting only on delivered milestones (for example three referred lenders paying for 6 months, completed pilots, and published case studies), lapsing if the partnership ends, and subject to drag-along. Never give a partner a board seat, a veto, or rights over the IP. Both agreements already say no equity passes except by a separate instrument your board approves (TC-EPA 8.4, TC-FPA 6.4).

Micromart. Its October invoice and partner terms are recorded in code as agreement TC-FPA-2026-01 at 30,000 for the whole estate. It has not been sent as a signed document. Use the Ecosystem Partner Agreement with a Micromart schedule, on the same pattern as Axe's.

06 The Interchange: build it as a regulated-grade utility

- **Get a regulatory opinion.** Sharing credit information between lenders is regulated in Kenya through licensed credit reference bureaus. Get a written opinion on whether the Interchange's tokenised, consent-based exposure exchange needs a licence, an approval, or to run under a licensed bureau's umbrella. Fund it from the raise if necessary.
- **Paper the bureau relationship.** Bureau reports reach Axe through the contract-holding member's Metropol subscription. Hold Metropol's agreement to this in writing, naming the Interchange and the reimbursement model, before you bill Axe for a bureau report. Until then the agreements fall back to Axe's own Metropol subscription (TC-FPA 5.3).
- **Separate governance from ownership.** The ecosystem governor admits members under written, equal rules. That reassures lenders that no single competitor runs the exchange, while HoldCo still owns the protocol, the code and the brand.
- **Keep the reciprocity rule in code** (contribute your book or lose the free tier). It is the network effect, and it is what makes the estate hard to leave.

07 Money and tax hygiene

- **eTIMS.** Lenders can deduct only expenses backed by KRA eTIMS invoices. Until ConnectedSuite submits invoices to eTIMS, issue each month's eTIMS invoice alongside the console PDF, or connect the billing module to eTIMS (it is in the build plan).
- **VAT.** Register once taxable turnover approaches the threshold, and then show VAT on invoices (the issuer settings support a KRA PIN line).
- **One ledger.** Every receipt into the till matched to an invoice number. The billing module now records the M-PESA code against each invoice, and the platform board confirms it.
- **Separate accounts** for HoldCo, and pay yourself through salary or dividends, never by drawing on the till.

08 Your checklist

#	ACTION	BY
1	Write down who owns Techcrast, the domains and ServiceSuite; collect any employment or contractor agreements you signed.	This week

2	Choose option A, B or C for invoices and the till; meet an advocate.	2 weeks
3	Run the billing handover SQL before 1 Nov 03:00 EAT (see the build plan).	31 Oct
4	Sign the Axe Founding Partnership Agreement; prepare Micromart's.	November
5	Incorporate HoldCo; deed of IP assignment; trademark searches.	November
6	Metropol written approval of the Interchange bureau arrangement; regulatory opinion engaged.	December
7	Investor conversations on the memorandum, using a convertible instrument.	From December

This guide is general guidance written to help you prepare. It is not legal or tax advice. Kenyan company, tax, data-protection and credit-information law should be confirmed by a qualified advocate and tax adviser before you act.